

Court No. - 3

Case :- WRIT - C No. - 21366 of 2017

Petitioner :- M/S Shiv Ganga Aata Mill

Respondent :- State Of U.P. And 3 Others

Counsel for Petitioner :- Swati Agrawal

Counsel for Respondent :- C.S.C.,Mahboob Ahmad

Hon'ble Krishna Murari,J.

Hon'ble Ravindra Nath Kakkar,J.

Heard Smt. Swati Agrawal, learned counsel for the petitioner and Sri R.S. Umrao, holding brief of Sri Mahboob Ahmad, learned counsel for respondents No. 2 to 4.

Petitioner is a consumer of Purvanchal Vidyut Vitaran Nigam Ltd. There was a dispute with respect to the bills being raised for consumption of electrical energy. The objection under Clause 6.5 of Electricity Act, 2005 was made by the petitioner. However, when no decision was taken, Writ Petition No. 65378 of 2015 was filed by the petitioner which was disposed of by a Division Bench of this Court on 02.12.2015 by passing the following order:-

"The petitioner disputes the electricity bills that have been raised by respondent-Purvanchal Vidhyut Vitran Nigam Ltd.

It is pointed out by Sri Rakesh Pandey, learned counsel appearing for the petitioner that objections have been filed under Clause 6.5 of the Electricity Supply Code, 2005, but no decision has been taken as yet, though they are required to be decided within seven days.

Sri Mahboob Ahmad, learned counsel appearing for the respondent-Power Corporation states that the objections filed by the petitioner shall be decided.

The writ petition is, accordingly, disposed of with a direction to the respondent-Power Corporation to make all endeavours to decide the objections filed by the petitioner within the stipulated time."

It is contended that even after specific direction given by this Court to decide the objection, when no decision was taken, petitioner was constraint to file a contempt petition which was disposed of vide order datd 08.01.2016 giving one more opportunity to the respondents to comply with the order passed by this Court. It is only thereafter order dated 11.01.2016 impugned in this petition, was passed rejecting the representation made by the petitioner and directing to pay a sum of Rs. 12,66,096/- as outstanding amount and only then the electricity connection shall be restored.

Learned counsel for the petitioner vehemently contends that a bare perusal of the impugned order goes to show that it is in gross violation of the order passed by

this Court inasmuch as none of the objections raised by the petitioner in its representation made under Clause 6.5 of the Electricity Act, 2005 has been considered. Petitioner has made specific averments that various amounts deposited on various dates have not been taken into account while issuing the bills of arrears. Petitioner has also claimed certain benefits which was liable to be extended for a consumption of electricity under LMV-6. None of the electricity rules were adverted by the authority while considering the case of the petitioner.

The impugned order is self-explanatory. Learned counsel for the respondents could not point out anything contrary to show that the objection filed by the petitioner was considered.

The impugned order has been passed without considering the objection raised by the petitioner. In such circumstances, impugned order being in gross violation of the order passed by this Court, is not liable to be sustained and is hereby quashed.

Writ petition accordingly stands allowed. The authority is directed to take a fresh decision in the matter in accordance with law after considering the objections raised by the petitioner in accordance with the directions given by a Division Bench of this Court vide order dated 02.12.2015 within a period of three weeks from the date of receipt of a certified copy of this order.

Order Date :- 16.5.2017

Sumit S